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File No.: EXP202405239

AI No. /00160/2024

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 23, 2023. The complaint is directed against CAIXABANK, S.A. with NIF A08663619 (hereinafter, the complained party/CAIXABANK).

The complainant states that:

- On February 28, 2022, they proceeded to empty, close, and cancel their bank account opened with the complained party.
- However, almost a year later, specifically on January 28, 2023, they received a communication at their email address from someone identified as the deputy director of the CAIXABANK banking entity where they had the canceled account, requesting information about an incident regarding the payment of an outstanding receipt with their insurer (...) during the first half of 2022, to which the complainant responded: "I recall that there was a problem a year ago, and I had to provide them with a new account and the ownership certificate. Why is this issue coming up if I am no longer with you?"
- On February 8, 2023, they received another email from the same deputy director indicating the following: "We have an accounting entry in the office, and I would like to know more details."
- On May 5, 2023, they received a call from said deputy director indicating that they have a receipt paid in the name of the complainant and sent it via email, at which point the complainant verified that said receipt from the insurer (life insurance) was charged to what was their previous canceled account on May 16, 2022, that is, after the emptying and cancellation of their account. The complainant states that on that date they did not receive any call from the entity warning them about the receipt, nor did they proceed to return or claim it to (...).
- The complainant also states that, days later, on May 18, 2023, they received another call indicating that they must go to the counter to pay the amount of the receipt, indicating that a series of errors had occurred and she, as the new deputy director of the office since January 2023, had to resolve the incident.

Along with the complaint, they provide a copy of the exchanged email messages with the deputy director of the complained entity, among which is the receipt from the insurer that appears charged on 05/16/2022 to the complainant's account and was sent to them by email from the aforementioned deputy director dated 05/05/2023, as the complainant states.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 07/07/2023, as recorded in the acknowledgment of receipt in the file.

THIRD: On August 2, 2023, CAIXABANK submitted allegations in response to the transfer, denying that there is any violation of data protection legislation based on the following:

- The aforementioned account had direct debits for an annual life insurance policy issued by the insurance company (...) since May 12, 2021.
- The account was canceled on February 28, 2022, by the complainant, without a "transfer signal" (that is, without the account holder requesting a change of deposit for the direct debited amounts); and apparently, without a new account being indicated to the issuing entity for the appropriate modification of the annual receipt direct debit.
- Under the previous circumstances, the debit corresponding to the annual premium of the insurance

policy was received on May 14, 2022; the receipt could not be debited from the canceled direct debit account, and, considering the characteristics of the same (it was a life insurance policy) and the possible harm to its holder, it was not returned, but was attended to, being charged to an administrative account of the office for its appropriate management with the holder.

- The incident that occurred was that the charge remained in the administrative account of the office without being managed with its holder until the date indicated by the complainant in their writing (January 2023).

- For the management of the debit attended by the office, the deputy director of the same contacted the complainant, as indicated by the complainant in their writing, explaining the incident that had occurred.

Along with the allegations, the following is attached:

- The response given to the complainant regarding this incident dated August 2, 2023, in which they are informed of what happened, in the same sense expressed in the allegations directed to this Agency.

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Screenshots of the current accounts of the claimant, which are 3, none of which correspond to the canceled account; and of the entry in the direct debit account receipt of the insurance that was charged.

FOURTH: On August 23, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Lack of Concurrent Infringing Conduct

The data contained in a current bank account of a natural person is considered personal data, the processing of which is subject to the regime provided for in the GDPR, as well as its implementing provisions, in accordance with the provisions of Article 4.1, 2, and 7 of the GDPR, which states the following:

"Article 4 Definitions

For the purposes of this Regulation, the following shall be understood as:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

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2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)

7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States (...)"

The processing of personal data contained in the current bank account of a natural person must be governed by the principles outlined in Article 5 of the GDPR, among which is the Principle of Lawfulness and Transparency provided for in the first paragraph of the same, which states:

"1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'); [...]"

Furthermore, Article 5.2 of the GDPR indicates that: "The controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it." With the ability to demonstrate it in the sense provided in Article 25 of the GDPR, which establishes the Principle of Proactive Accountability of the controller.

In furtherance of this principle, Article 6 of the GDPR concerning the "Lawfulness of Processing" determines in its paragraph 1 the circumstances under which the regulation allows the processing of personal data of a third party, referred to as "lawful bases." If none of these circumstances or conditions are met, the processing will not be legitimate or considered lawful under the GDPR:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this case, the complainant alleges that the bank in question carried out an unlawful processing operation by accessing one of their bank accounts, which had been canceled on 28/02/22, to charge a direct debit for a life insurance policy that was received after that date, which would imply that it was acting without a lawful basis, since upon the termination of the contractual relationship between the parties, the bank would no longer have any lawful basis under Article 6.1 of the GDPR to access this account again to charge a new receipt.

In view of the documentation in the file, there is evidence that the bank in question contacted the complainant by telephone in January 2023 and by email on 28/03/23 and 03/05/23, in order to request payment of a receipt for a life insurance policy that was directly debited from the account that was canceled on 28/02/23.

For its part, the bank in question responded to the request from this Agency, indicating that it did not charge the receipt to the complainant's account, but rather attended to it in order not to harm the complainant and charged it to an administrative account of the entity, awaiting to claim payment from the complainant later. Specifically, the bank states and proves the following:

1. "Mr. A.A.A. was the holder of current account number (...) until February 2022.
2. In the aforementioned account, Mr. A.A.A. had a direct debit for a receipt corresponding to an annual life insurance policy, issued by the insurance company (...) (...).
3. The aforementioned account was canceled on February 28, 2022, without a 'transfer signal' (i.e., without the holder requesting a change of deposit for the direct debits); and, apparently, without a new account being indicated to the issuing entity for the timely modification of the direct debit of the annual receipt.
4. Under the previous circumstances, the debit corresponding to the annual premium of the insurance policy was received on May 14, 2022; the receipt could not be debited from the canceled direct debit account, and, considering the characteristics of the same (it was a life insurance policy) and the possible harm to its holder, it was not returned but was attended to, being charged to an administrative account of the office for its timely management with the holder."

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And this is the incident that occurred: the charge remained in the administrative account of the office without being managed before its holder, until the date indicated by the claimant in his writing (January 2023).

In the present file, there is evidence that corroborates the version of the responding party. Thus, the claimant provides the receipt of the charge for the debit of direct debits corresponding to the payment of the life insurance dated May 16, 2022, which was sent to him by the responding party via email on May 5, 2023, where it can be observed that the aforementioned life insurance receipt corresponding to the year 2022 was charged to a bank account number that does not match the number of the canceled account that was owned by the claimant ((...)), indicating at the bottom of the receipt "Office Management, CaixaBank, S.A."

This bank account number also does not match any of the other 3 "sight" bank accounts that continue to be in the name of the claimant, according to the responding party.

Therefore, it is not evidenced that there has been any unlawful processing of personal data by the responding party, since from the receipt issued it is clearly deduced that the banking entity did not access the canceled account that was in the name of the claimant, but rather charged that receipt to another bank account, awaiting to subsequently claim payment from him.

Thus, no infringement of the regulations on personal data protection by the responding entity is observed, and there is no need to make any pronouncement regarding the appropriateness of the claim for the receipt by the banking entity to the claimant, as it is a legal relationship between parties that exceeds the jurisdictional scope of this Agency.

III

Conclusion

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdictional scope of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out,

applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing referred to by the claimant, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CAIXABANK, S.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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